

EXHIBIT A

MAIL

L.A. NSYNC

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
DELMAR TORO and DANIEL MARTINEZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK and
P.O. MAHONEY, P.O. STEVEN DELATORRE,
P.O. THOMAS WOODS,Defendants.
-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiffs' Attorney(s) within twenty (20) days after the service of this Summons, exclusive of the day of service (or thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: July 14, 2014

CITY OF NEW YORK
100 Church Street
New York, New York 10007P.O. MAHONEY, 830 4th Avenue, Brooklyn, NY 11232
P.O. STEVEN DELATORRE, 142 Lake DR, Mahopac, NY 10541
P.O. THOMAS WOODS, 10 Chestnut Oval, Orangeburg, NY 10962

Notice: The nature of this action is:

Negligence, assault and battery, false imprisonment, violation of civil rights,

Negligent infliction of emotional distress; malicious prosecution

The relief sought is: Monetary damages

Upon failure to appear, judgment will be taken against you by default with interest from May 7, 2013, together with attorneys' fees and the costs of this action

Index #:

Date Filed:

SUMMONS WITH NOTICE

Plaintiffs designate

Place of Trial

BRONX County

Basis of Venue

Place of Occurrence

Plaintiffs' Residence

RUBERT & GROSS, P.C.

Attorneys for Plaintiff

150 Broadway, Suite 712

New York, New York 10038

(212) 908-3103

ERNESTINE MINGS
CLERK
COUNTYJUL 14 2014
PM 2:46

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
DELMAR TORO and DANIEL MARTINEZ

Index No.:

Plaintiffs,

-against-

COMPLAINTTHE CITY OF NEW YORK, P.O. Mahoney of the
52nd Precinct Narcotics Division, P.O. Steven Delatorre,
Tax # 903765 and P.O. Thomas Woods, Tax # 923384Defendants.
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COUNTY CLERK
BRONX COUNTY

RECEIVED

Plaintiffs, DELMAR TORO and DANIEL MARTINEZ, by their attorneys, RUBERT & GROSS, P.C., complaining of Defendants, THE CITY OF NEW YORK (Hereinafter, "CITY") and P.O. Mahoney (Hereinafter, "MAHONEY"), P.O. Steven Delatorre, tax registration number 903765 (Hereinafter, "DELATORRE") and P.O. Thomas Woods, tax registration number 923384 (Hereinafter, "WOODS") alleges as follows:

1. That at all times hereinafter mentioned, Plaintiff, DELMAR TORO, was and still is a resident of Bronx County, City and State of New York.
2. That at all times hereinafter mentioned, Plaintiff, DANIEL MARTINEZ, was and still is a resident of Bronx County, City and State of New York.
3. At all times hereinafter mentioned, defendant, CITY, was and is a municipal corporation created, organized and duly existing under and by virtue of the laws of the State of New York.
4. At all times hereinafter mentioned, defendant, CITY, its agents, servants and/or employees operated, maintained, managed and controlled the New York City Police Department including all police officers thereof.

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5. At all times herein after mentioned, the New York City Police Department is an agency, instrumentality, department of defendant, CITY, and/or defendant, CITY, derived benefits from the activities of the New York City Police Department.

6. At all times hereinafter mentioned, defendant, MAHONEY, was an employee and/or agent of the New York City Police Department, a municipal agency of defendant, CITY.

7. At all times hereinafter mentioned, defendant, DELATORRE, was an employee and/or agent of the New York City Police Department, a municipal agency of defendant, CITY.

8. At all times hereinafter mentioned, defendant, WOODS, was an employee and/or agent of the New York City Police Department, a municipal agency of defendant, CITY.

9. Defendant, MAHONEY, is sued individually and in his official capacity.

10. Defendant, DELATORRE, is sued individually and in his official capacity.

11. Defendant, WOODS, is sued individually and in his official capacity.

12. At all times hereinafter mentioned, defendant, MAHONEY, was acting within the scope of his employment as a police officer with the New York City Police Department.

13. At all times hereinafter mentioned, defendant, DELATORRE, was acting within the scope of his employment as a police officer with the New York City Police Department.

14. At all times hereinafter mentioned, defendant, WOODS, was acting within the scope of his employment as a police officer with the New York City Police Department.

15. At all times hereinafter mentioned, defendant, MAHONEY, was acting under color of law and authority as a police officer with the New York City Police Department.

16. At all times hereinafter mentioned, defendant, DELATORRE, was acting under color of law and authority as a police officer with the New York City Police Department.

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17. At all times hereinafter mentioned, defendant, WOODS, was acting under color of law and authority as a police officer with the New York City Police Department.

18. On July 31, 2013, plaintiff DELMAR TORO duly served a Notice of Claim upon defendants in the manner and mode required by law.

19. On July 31, 2013, plaintiff, DANIEL MARTINEZ, duly served a Notice of Claim upon defendants in the manner and mode required by law.

20. On September 18, 2013, Plaintiff DELMAR TORRO was orally examined pursuant to General Municipal Law 50-h.

21. On September 18, 2013, Plaintiff DANIEL MARTINEZ was orally examined pursuant to General Municipal Law 50-h.

22. That plaintiffs have complied with all conditions precedent applicable to the instant action.

23. That this action falls within one or more of the exceptions of CPLR §1602, including, but not limited to CPLR §1602 (11).

FIRST CAUSE OF ACTION

24. Plaintiffs repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "23" above as if fully set forth herein.

25. That on May 7, 2013, at approximately 2:45p.m., while plaintiff Delmar Toro was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, he was assaulted and battered by members of the New York City Police Department.

26. That on May 7, 2013, at approximately 2:45p.m., while plaintiff Daniel Martinez was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, he was assaulted and battered by members of the New York City Police Department.

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27. That on May 7, 2013, at approximately 2:45p.m., while plaintiff Delmar Toro was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, he was assaulted and battered by Defendant MAHONEY.

28. That on May 7, 2013, at approximately 2:45p.m., while plaintiff Delmar Toro was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, he was assaulted and battered by Defendant DELATORRE.

29. That on May 7, 2013, at approximately 2:45p.m., while plaintiff Delmar Toro was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, he was assaulted and battered by Defendant WOODS.

30. That on May 7, 2013, at approximately 2:45p.m., while plaintiff Daniel Martinez was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, he was assaulted and battered by Defendant MAHONEY.

31. That on May 7, 2013, at approximately 2:45p.m., while plaintiff Daniel Martinez was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, he was assaulted and battered by Defendant DELATORRE.

32. That on May 7, 2013, at approximately 2:45p.m., while plaintiff Daniel Martinez was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, he was assaulted and battered by Defendant WOODS.

33. That at all times mentioned herein, defendant MAHONEY was acting under the color of authority, and in furtherance of his employer, the NYPD's interest.

34. That at all times mentioned herein, defendant DELATORRE was acting under the color of authority, and in furtherance of his employer, the NYPD's interest.

35. As a result of the forgoing, plaintiffs were caused to suffer personal injuries, violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputation and standing in the community.

36. By reason of the foregoing, plaintiff demands judgment against Defendants in a sum of money, which exceeds the jurisdictional limits of all Court of lesser jurisdiction

SECOND CAUSE OF ACTION

37. Plaintiffs repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "36" above as if fully set forth herein.

38. That on or about May 7, 2013, at approximately 2:45p.m., while Plaintiff, Delmar Toro was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, Defendants, CITY, by and through its agents, servants and/or employees, falsely arrested, imprisoned and detained by members of the New York City Police Department.

39. That on or about May 7, 2013, at approximately 2:45p.m., while Plaintiff, Daniel Martinez was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, Defendants, CITY, by and through its agents, servants and/or employees, falsely arrested, imprisoned and detained by members of the New York City Police Department.

40. That on or about May 7, 2013, at approximately 2:45p.m., while Plaintiff Delmar Toro was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, Defendant, MAHONEY, falsely arrested, imprisoned and detained him without probable cause, without a warrant and in bad faith.

41. That on or about May 7, 2013, at approximately 2:45p.m., while Plaintiff Daniel Martinez was walking along 204th Street between Grand Concourse and Valentine Avenue in the

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County of Bronx, Defendant, MAHONEY, falsely arrested, imprisoned and detained him without probable cause, without a warrant and in bad faith.

42. That on or about May 7, 2013, at approximately 2:45p.m., while Plaintiff Delmar Toro was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, Defendant, DELATORRE, falsely arrested, imprisoned and detained him without probable cause, without a warrant and in bad faith.

43. That on or about May 7, 2013, at approximately 2:45p.m., while Plaintiff Daniel Martinez was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, Defendant, DELATORRE, falsely arrested, imprisoned and detained him without probable cause, without a warrant and in bad faith.

44. That on or about May 7, 2013, at approximately 2:45p.m., while Plaintiff Delmar Toro was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, Defendant, WOODS, falsely arrested, imprisoned and detained him without probable cause, without a warrant and in bad faith.

45. That on or about May 7, 2013, at approximately 2:45p.m., while Plaintiff Daniel Martinez was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, Defendant, WOODS, falsely arrested, imprisoned and detained him without probable cause, without a warrant and in bad faith.

46. In commencing and continuing said wrongful detainment and imprisonment, Defendants caused Plaintiffs, DELMAR TORO, to be wrongfully detained in violation of the Penal Laws of the State of New York and their constitutional rights.

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47. In commencing and continuing said wrongful detainment and imprisonment, Defendants caused Plaintiffs, DANIEL MARTINEZ, to be wrongfully detained in violation of the Penal Laws of the State of New York and their constitutional rights.

48. At the time of his unlawful imprisonment and arrest Plaintiff, DELMAR TORO had not committed any illegal act.

49. At the time of his unlawful imprisonment and arrest Plaintiff, DANIEL MARTINEZ had not committed any illegal act.

50. At the time of his unlawful imprisonment and arrest, Plaintiff, DELMAR TORO had not committed or attempted to commit any crime.

51. At the time of his unlawful imprisonment and arrest, Plaintiff, DANIEL MARTINEZ had not committed or attempted to commit any crime.

52. Plaintiff, DELMAR TORO had not given Defendants probable cause to believe that they had committed any illegal acts.

53. Plaintiff, DANIEL MARTINEZ had not given Defendants probable cause to believe that they had committed any illegal acts.

54. At the time of Plaintiff, DELMAR TORO'S unlawful imprisonment and arrest, Defendants knew of should have know, through the exercise of proper procedure and reasonable investigation that the aforementioned arrest and detention was false and without probable cause.

55. At the time of Plaintiff, DANIEL MARTINEZ'S unlawful imprisonment and arrest, Defendants knew of should have know, through the exercise of proper procedure and reasonable investigation that the aforementioned arrest and detention was false and without probable cause.

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56. Defendant, MAHONEY, acted in bad faith and without justification in committing the aforesaid unlawful imprisonment and arrest of Plaintiff, DELMAR TORO.

57. Defendant, MAHONEY, acted in bad faith and without justification in committing the aforesaid unlawful imprisonment and arrest of Plaintiff, DANIEL MARTINEZ.

58. Defendant, DELATORRE, acted in bad faith and without justification in committing the aforesaid unlawful imprisonment and arrest of Plaintiff, DELMAR TORO.

59. Defendant, DELATORRE, acted in bad faith and without justification in committing the aforesaid unlawful imprisonment and arrest of Plaintiff, DANIEL MARTINEZ.

60. Defendant, WOODS, acted in bad faith and without justification in committing the aforesaid unlawful imprisonment and arrest of Plaintiff, DELMAR TORO.

61. Defendant, WOODS, acted in bad faith and without justification in committing the aforesaid unlawful imprisonment and arrest of Plaintiff, DANIEL MARTINEZ.

62. That the aforesaid arrest of plaintiff, DELMAR TORO was malicious, unlawful and not based upon a warrant, probable cause, and/or any other justification, and was therefore a false arrest.

63. That the aforesaid arrest of plaintiff, DANIEL MARTINEZ was malicious, unlawful and not based upon a warrant, probable cause, and/or any other justification, and was therefore a false arrest.

64. As a result of the foregoing, Plaintiffs DELMAR TORO and DANIEL MARTINEZ were caused to suffer personal injuries, violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputation and standing in their community.

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65. As a result of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money, which exceeds the jurisdictional limits of all Court of lesser jurisdiction.

THIRD CAUSE OF ACTION

66. Plaintiffs repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "65" above as if fully set forth herein.

67. Defendant, MAHONEY's, conduct toward Plaintiff, DELMAR TORO was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

68. Defendant, MAHONEY's, conduct toward Plaintiff, DANIEL MARTINEZ was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

69. Defendant, DELATORRE's, conduct towards Plaintiff, DELMAR TORO was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

70. Defendant, DELATORRE's, conduct towards Plaintiff, DANIEL MARTINEZ was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

71. Defendant, WOODS', conduct towards Plaintiff, DELMAR TORO was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

72. Defendant, WOODS', conduct towards Plaintiff, DANIEL MARTINEZ was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

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73. Defendant, MAHONEY acted with desire to cause Plaintiff, DELMAR TORO mental distress or acted under circumstances known to them which made it substantially certain that they would cause such mental distress.

74. Defendant, MAHONEY acted with desire to cause Plaintiff, DANIEL MARTINEZ mental distress or acted under circumstances known to them which made it substantially certain that they would cause such mental distress.

75. Defendant, DELATORRE acted with desire to cause Plaintiff, DELMAR TORO mental distress or acted under circumstances known to them which made it substantially certain that they would cause such mental distress.

76. Defendant, DELATORRE acted with desire to cause Plaintiff, DANIEL MARTINEZ mental distress or acted under circumstances known to them which made it substantially certain that they would cause such mental distress.

77. Defendant, WOODS acted with desire to cause Plaintiff, DELMAR TORO mental distress or acted under circumstances known to them which made it substantially certain that they would cause such mental distress.

78. Defendant, WOODS acted with desire to cause Plaintiff, DANIEL MARTINEZ mental distress or acted under circumstances known to them which made it substantially certain that they would cause such mental distress.

79. Defendant, MAHONEY, acted with utter disregard of the consequences of his actions.

80. Defendant, DELATORRE, acted with utter disregard of the consequences of his actions.

81. Defendant, WOODS, acted with utter disregard of the consequences of his actions.

82. As a result of the foregoing, Plaintiffs demands judgment against Defendants in a sum of money, which exceeds the jurisdictional limits of all Court of lesser jurisdiction.

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FOURTH CAUSE OF ACTION

83. Plaintiffs repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "82" above as if fully set forth herein.

84. That subsequent to plaintiffs arrest, Defendant, CITY, through its agents, servants and/or employees, did maliciously cause a criminal prosecution to be commenced against plaintiff in the Criminal Court of the City of New York, County of Bronx, by filing an accusatory instrument, without probable cause and in bad faith.

85. That subsequent to Plaintiff, DELMAR TORO arrest, Defendant, MAHONEY, did maliciously cause a criminal prosecution to be commenced against Plaintiff.

86. That subsequent to Plaintiff, DANIEL MARTINEZ arrest, Defendant, MAHONEY, did maliciously cause a criminal prosecution to be commenced against Plaintiff.

87. That subsequent to Plaintiff, DELMAR TORO arrest, Defendant, DELATORRE, did maliciously cause a criminal prosecution to be commenced against Plaintiff.

88. That subsequent to Plaintiff, DANIEL MARTINEZ arrest, Defendant, DELATORRE, did maliciously cause a criminal prosecution to be commenced against Plaintiff.

89. That subsequent to Plaintiff, DELMAR TORO arrest, Defendant, WOODS, did maliciously cause a criminal prosecution to be commenced against Plaintiff.

90. That subsequent to Plaintiff, DANIEL MARTINEZ arrest, Defendant, WOODS, did maliciously cause a criminal prosecution to be commenced against Plaintiffs.

91. That subsequent to Plaintiff, DELMAR TORO arrest, Defendant, MAHONEY, did give false testimony in connection with Plaintiff's criminal prosecution.

92. That subsequent to Plaintiff, DELMAR TORO arrest, Defendant, MAHONEY, did give false testimony in connection with Plaintiff's criminal prosecution.

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93. That subsequent to Plaintiff, DELMAR TORO arrest, Defendant, DELATORRE, did give false testimony in connection with Plaintiff's criminal prosecution.

94. That subsequent to Plaintiff, DANIEL MARTINEZ arrest, Defendant, DELATORRE, did give false testimony in connection with Plaintiff's criminal prosecution.

95. That subsequent to Plaintiff, DELMAR TORO arrest, Defendant, WOODS, did give false testimony in connection with Plaintiff's criminal prosecution.

96. That subsequent to Plaintiff, DANIEL MARTINEZ arrest, Defendant, WOODS, did give false testimony in connection with Plaintiff's criminal prosecution.

97. In commencing and continuing said malicious prosecution, Defendant, CITY, its agents, servants and/or employees, caused Plaintiff, DELMAR TORO to be falsely charged with acts in violation of the Penal Law of the State of New York.

98. In commencing and continuing said malicious prosecution, Defendant, CITY, its agents, servants and/or employees, caused Plaintiff, DANIEL MARTINEZ to be falsely charged with acts in violation of the Penal Law of the State of New York.

99. In commencing and continuing said malicious prosecution, Defendant, MAHONEY, caused Plaintiff, DELMAR TORO to be falsely charged with acts in violation of the Penal Law of the State of New York.

100. In commencing and continuing said malicious prosecution, Defendant, MAHONEY, caused Plaintiff, DANIEL MARTIENZ to be falsely charged with acts in violation of the Penal Law of the State of New York.

101. In commencing and continuing said malicious prosecution, Defendant, DELATORRE, caused Plaintiff, DELMAR TORO to be falsely charged with acts in violation of the Penal Law of the State of New York.

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102. In commencing and continuing said malicious prosecution, Defendant, DELATORRE, caused Plaintiff, DANIEL MARTIENZ to be falsely charged with acts in violation of the Penal Law of the State of New York.

103. In commencing and continuing said malicious prosecution, Defendant, WOODS, caused Plaintiff, DELMAR TORO to be falsely charged with acts in violation of the Penal Law of the State of New York.

104. In commencing and continuing said malicious prosecution, Defendant, WOODS, caused Plaintiff, DANIEL MARTINEZ to be falsely charged with acts in violation of the Penal Law of the State of New York.

105. That Plaintiff, DELMAR TORO had not committed or attempted to commit any illegal act(s).

106. That Plaintiff, DANIEL MARTINEZ had not committed or attempted to commit any illegal act(s).

107. That Plaintiff, DELMAR TORO had not given defendant, CITY, its agents, servants and/or employees, probable cause to believe that they had not committed the illegal acts of which he was accused.

108. That Plaintiff, DANIEL MARTINEZ had not given defendant, CITY, its agents, servants and/or employees, probable cause to believe that they had not committed the illegal acts of which he was accused.

109. That Plaintiff, DELMAR TORO had not given defendant, MAHONEY, probable cause to believe that he committed the illegal acts of which they were accused.

110. That Plaintiff, DANIEL MARTINEZ had not given defendant, MAHONEY, probable cause to believe that he committed the illegal acts of which they were accused.

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111. That Plaintiff, DELMAR TORO had not given defendant, DELATORRE, probable cause to believe that he committed the illegal acts of which they were accused.

112. That Plaintiff, DANIEL MARTINEZ had not given defendant, DELATORRE, probable cause to believe that he committed the illegal acts of which they were accused.

113. That Plaintiff, DELMAR TORO had not given defendant, WOODS, probable cause to believe that he committed the illegal acts of which they were accused.

114. That Plaintiff, DANIEL MARTINEZ had not given defendant, WOODS, probable cause to believe that he committed the illegal acts of which they were accused.

115. That Defendant, CITY, its agents, servants and/or employees, knew or should have known, through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.

116. That Defendant, MAHONEY, knew or should have known, through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.

117. That Defendant, DELATORRE, knew or should have known, through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.

118. That Defendant, WOODS, knew or should have known, through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.

119. That Defendant, CITY, its agents, servants and/or employees, willfully and wrongfully accused Plaintiff, DELMAR TORO of having violated the Penal Law of the State of New York.

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120. That Defendant, CITY, its agents, servants and/or employees, willfully and wrongfully accused Plaintiff, DANIEL MARTINEZ of having violated the Penal Law of the State of New York.

121. That Defendant, MAHONEY, willfully and wrongfully accused plaintiff, DELMAR TORO of having violated the Penal Code of the State of New York.

122. That Defendant, MAHONEY, willfully and wrongfully accused plaintiff, DANIEL MARTINEZ of having violated the Penal Code of the State of New York.

123. That Defendant, DELATORRE, willfully and wrongfully accused plaintiff, DELMAR TORO of having violated the Penal Code of the State of New York.

124. That Defendant, DELATORRE, willfully and wrongfully accused plaintiff, DANIEL MARTINEZ of having violated the Penal Code of the State of New York.

125. That Defendant, WOODS, willfully and wrongfully accused plaintiff, DELMAR TORO of having violated the Penal Code of the State of New York.

126. That Defendant, WOODS, willfully and wrongfully accused plaintiff, DANIEL MARTINEZ of having violated the Penal Code of the State of New York.

127. That all charges against Plaintiff, DELMAR TORO were dismissed on or about May 8, 2013.

128. That all charges against Plaintiff, DANIEL MARTINEZ were dismissed on or about May 8, 2013.

129. As a result of the aforementioned malicious prosecution, Plaintiffs suffered and continues to suffer substantial damages.

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130. As a result of the foregoing, Plaintiffs were caused to suffer personal injuries, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

131. By reason of the foregoing, Plaintiffs demand judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION

132. Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "131" above as if fully set forth herein.

133. That Defendant, CITY, through its agents, servants and/or employees, including, but not limited to, Defendants, MAHONEY, DELATORRE and WOODS, negligently performed their duties in that they failed to exercise such care in the performance of their police duties as reasonably prudent police officers would have under similar circumstances.

134. That Defendant, MAHONEY, negligently performed his duties in that he failed to exercise such care in the performance of his police duties as a reasonably prudent police officer would have under similar circumstances.

135. That Defendant, DELATORRE, negligently performed his duties in that he failed to exercise such care in the performance of his police duties as a reasonably prudent police officer would have under similar circumstances.

136. That Defendant, WOODS, negligently performed his duties in that he failed to exercise such care in the performance of his police duties as a reasonably prudent police officer would have under similar circumstances.

137. As a result of the Defendants' negligence, Plaintiffs were caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress.

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anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputation and standing within his community.

138. By reason of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

SIXTH CAUSE OF ACTION

139. Plaintiff repeats and reiterates each and every allegation contained in the paragraphs numbered "1" through "138" above as id fully set forth herein.

140. That the actions of the Defendant, CITY, through its agents, servants and/or employees, including but not limited to Defendants, MAHONEY, DELATORRE, WOODS, heretofore described constitute negligence in that defendant, CITY, negligently trained or failed to train its agents, servants and/or employees, especially Defendants, MAHONEY, DELATORRE, and WOODS.

141. That the actions of Defendant, CITY, through its agents, servants and/or employees, including defendant, MAHONEY, DELATORRE, and WOODS, heretofore described constitute negligence in that Defendant, CITY, negligently supervised or failed to supervise its agents, servants, and/or employees, especially Defendants, MAHONEY, DELATORRE, WOODS.

142. That the actions of Defendant, CITY, through its agents, servants and/or employees, including but not limited to Defendant, MAHONEY, DELATORRE and WOODS, heretofore described constitute negligence in that Defendant, CITY, negligently disciplined or failed to discipline its agent, servants and /or employees, especially Defendants, MAHONEY, DELATORRE and WOODS.

143. That the Defendant, CITY, was negligent in its hiring of its agents, servants and/or employees, especially Defendant, MAHONEY, DELATORRE and WOODS, who defendant,

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CITY, knew or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold their positions.

144. That Defendant, CITY, was negligent in its retention of its agents, servant, and/or employees, especially Defendants, MAHONEY, DELATORRE, and WOODS, who Defendant City, knew or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold their positions in that they refused or failed to perform within the statutory and constitutional limits of their authority and misused and abused their position.

145. As a result of the Defendants' negligence, Plaintiffs, DELMAR TORO and DANIEL MARTINEZ were caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputation and standing within his community.

146. By reason of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

SEVENTH CAUSE OF ACTION

147. Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "146" above as if fully set forth herein.

148. That on May 7, 2013, at approximately 2:45p.m., while Plaintiff, DELMAR TORO was walking along 204th Street between Grand Concourse and Valentine Avenue in the County of Bronx, he was wrongfully arrested and detained by members of the New York City Police Department.

149. That on May 7, 2013, at approximately 2:45p.m., while Plaintiff, DANIEL MARTINEZ was walking along 204th Street between Grand Concourse and Valentine Avenue in the County

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of Bronx, he was wrongfully arrested and detained by members of the New York City Police Department.

150. That Plaintiff, DELMAR TORO was assaulted and battered, without provocation or justification by Defendants, MAHONEY, DELATORRE, and WOODS and other New York City Police Officers whose names are presently unknown.

151. That Plaintiff, DELMAR TORO was assaulted and battered, without provocation or justification by Defendants, MAHONEY, DELATORRE, and WOODS and other New York City Police Officers whose names are presently unknown.

152. That Plaintiff, DELMAR TORO was subsequently falsely arrested by Defendants, MAHONEY, DELATORRE, WOODS and other New York City Police Officers whose names are presently unknown and taken to the 52nd Precinct where they were detained.

153. That Plaintiff, DELMAR TORO was subsequently falsely arrested by Defendants, MAHONEY, DELATORRE, WOODS and other New York City Police Officers whose names are presently unknown and taken to the 52nd Precinct where they were detained.

154. That said arrest, detention and imprisonment of Plaintiff, DELMAR TORO was without warrant, probable cause and/or justification.

155. That said arrest, detention and imprisonment of Plaintiff, DANIEL MARTINEZ was without warrant, probable cause and/or justification.

156. Defendant, MAHONEY did maliciously commence a prosecution against Plaintiff, DELMAR TORO, claiming that plaintiff had violated the Penal Law.

157. Defendant, MAHONEY did maliciously commence a prosecution against Plaintiff, DANIEL MARTINEZ, claiming that plaintiff had violated the Penal Law.

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158. Defendant, DELATORRE did maliciously commence a prosecution against Plaintiff, DELMAR TORO, claiming that plaintiff had violated the Penal Law.

159. Defendant, DELATORRE did maliciously commence a prosecution against Plaintiff, DANIEL MARTINEZ, claiming that plaintiff had violated the Penal Law.

160. That the actions of Defendant, MAHONEY heretofore described, constitute unlawful arrest detention, imprisonment, assault and battery and malicious prosecution and were designed to and did cause specific and serious bodily harm, pain and suffering to Plaintiffs in violation of Plaintiffs' Constitutional rights as guaranteed under 42 U.S.C. §1983 and the Constitutions of the State of New York.

161. That the actions of Defendant, DELATORRE heretofore described, constitute unlawful arrest detention, imprisonment, assault and battery and malicious prosecution and were designed to and did cause specific and serious bodily harm, pain and suffering to Plaintiffs in violation of Plaintiffs' Constitutional rights as guaranteed under 42 U.S.C. § 1983 and the Constitutions of the State of New York.

162. That the actions of Defendant, WOODS heretofore described, constitute unlawful arrest detention, imprisonment, assault and battery and malicious prosecution and were designed to and did cause specific and serious bodily harm, pain and suffering to Plaintiffs in violation of Plaintiffs' Constitutional rights as guaranteed under 42 U.S.C. § 1983 and the Constitutions of the State of New York.

163. That Defendant, MAHONEY, violated plaintiff, DELMAR TORO's civil rights by subjecting him to an illegal search and seizure in violation of 42 U.S.C. § 1983, the U.S. Constitution and the State of New York.

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164. That Defendant, MAHONEY, violated plaintiff, DANIEL MARTINEZ's civil rights by subjecting him to an illegal search and seizure in violation of 42 U.S.C. § 1983, the U.S. Constitution and the State of New York.

165. That Defendant, DELATORRE, violated plaintiff, DELMAR TORO's civil rights by subjecting him to an illegal search and seizure in violation of 42 U.S.C. § 1983, the U.S. Constitution and the State of New York.

166. That Defendant, DELATORRE, violated plaintiff, DANIEL MARTINEZ's civil rights by subjecting him to an illegal search and seizure in violation of 42 U.S.C. § 1983, the U.S. Constitution and the State of New York.

167. That Defendant, WOODS, violated plaintiff, DELMAR TORO's civil rights by subjecting him to an illegal search and seizure in violation of 42 U.S.C. § 1983, the U.S. Constitution and the State of New York.

168. That Defendant, WOODS, violated plaintiff, DANIEL MARTINEZ's civil rights by subjecting him to an illegal search and seizure in violation of 42 U.S.C. § 1983, the U.S. Constitution and the State of New York.

169. That Defendants, MAHONEY violated Plaintiff, DELMAR TORO's civil rights by using excessive force against him in violation of 42 U.S.C. § 1983, the U.S. Constitution and the State of New York.

170. That Defendants, MAHONEY violated Plaintiff, DANEIL MARTINEZ's civil rights by using excessive force against him in violation of 42 U.S.C. § 1983, the U.S. Constitution and the State of New York.

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171. That Defendants, DELATORRE violated Plaintiff, DELMAR TORO's civil rights by using excessive force against him in violation of 42 U.S.C. § 1983, the U.S. Constitution and the State of New York.

172. That Defendants, DELATORRE violated Plaintiff, DANEIL MARTINEZ's civil rights by using excessive force against him in violation of 42 U.S.C. § 1983, the U.S. Constitution and the State of New York.

173. That Defendants, WOODS violated Plaintiff, DELMAR TORO's civil rights by using excessive force against him in violation of 42 U.S.C. § 1983, the U.S. Constitution and the State of New York.

174. That Defendants, WOODS violated Plaintiff, DANEIL MARTINEZ's civil rights by using excessive force against him in violation of 42 U.S.C. § 1983, the U.S. Constitution and the State of New York.

175. That Defendants, MAHONEY violated Plaintiff, DELMAR TORO's civil rights by falsely accusing them of having committed a crime in violation of 42 U.S.C. § 1983, the U.S. Constitution and the Constitution of the State of New York.

176. That Defendants, MAHONEY violated Plaintiff, DANIEL MARTINEZ civil rights by falsely accusing them of having committed a crime in violation of 42 U.S.C. § 1983, the U.S. Constitution and the Constitution of the State of New York.

177. That Defendants, DELATORRE violated Plaintiff, DELMAR TORO's civil rights by falsely accusing them of having committed a crime in violation of 42 U.S.C. § 1983, the U.S. Constitution and the Constitution of the State of New York.

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178. That Defendants, DELATORRE violated Plaintiff, DANIEL MARTINEZ civil rights by falsely accusing them of having committed a crime in violation of 42 U.S.C. § 1983, the U.S. Constitution and the Constitution of the State of New York.

179. That Defendants, WOODS violated Plaintiff, DELMAR TORO's civil rights by falsely accusing them of having committed a crime in violation of 42 U.S.C. § 1983, the U.S. Constitution and the Constitution of the State of New York.

180. That Defendants, WOODS violated Plaintiff, DANIEL MARTINEZ civil rights by falsely accusing them of having committed a crime in violation of 42 U.S.C. § 1983, the U.S. Constitution and the Constitution of the State of New York.

181. That Defendant, MAHONEY, violated Plaintiff, DELMAR TORO's civil rights by maliciously causing a prosecution to be commenced against Plaintiff.

182. That Defendant, MAHONEY, violated Plaintiff, DANIEL MARTINEZ's civil rights by maliciously causing a prosecution to be commenced against Plaintiff.

183. That Defendant, DELATORRE, violated Plaintiff, DELMAR TORO's civil rights by maliciously causing a prosecution to be commenced against Plaintiff.

184. That Defendant, DELATORRE, violated Plaintiff, DANIEL MARTINEZ's civil rights by maliciously causing a prosecution to be commenced against Plaintiff.

185. That Defendant, WOODS, violated Plaintiff, DELMAR TORO's civil rights by maliciously causing a prosecution to be commenced against Plaintiff.

186. That Defendant, WOODS, violated Plaintiff, DANIEL MARTINEZ's civil rights by maliciously causing a prosecution to be commenced against Plaintiff.

187. That Defendants, MAHONEY, violated Plaintiff, DELMAR TORO civil rights based on race in violation of 42 U.S.C. § 1983, the U.S. Constitution and the Constitution of the State of New York.

188. That Defendants, MAHONEY, violated Plaintiff, DANIEL MARTINEZ civil rights based on race in violation of 42 U.S.C. § 1983, the U.S. Constitution and the Constitution of the State of New York.

189. That Defendants, DELATORRE, violated Plaintiff, DELMAR TORO civil rights based on race in violation of 42 U.S.C. § 1983, the U.S. Constitution and the Constitution of the State of New York.

190. That Defendants, DELATORRE, violated Plaintiff, DANIEL MARTINEZ civil rights based on race in violation of 42 U.S.C. § 1983, the U.S. Constitution and the Constitution of the State of New York.

191. That Defendants, WOODS, violated Plaintiff, DELMAR TORO civil rights based on race in violation of 42 U.S.C. § 1983, the U.S. Constitution and the Constitution of the State of New York.

192. That Defendants, WOODS, violated Plaintiff, DANIEL MARTINEZ civil rights based on race in violation of 42 U.S.C. § 1983, the U.S. Constitution and the Constitution of the State of New York.

193. That the conduct and actions of Defendant, MAHONEY acting in concert and under the color of State law, in assaulting, battering, detaining, and imprisoning and maliciously prosecuting Plaintiff, DELMAR TORO was done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause bodily harm, pain and suffering in

violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and set forth in the U.S. Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

194. That the conduct and actions of Defendant, MAHONEY acting in concert and under the color of State law, in assaulting, battering, detaining, and imprisoning and maliciously prosecuting Plaintiff, DANIEL MARTINEZ was done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause bodily harm, pain and suffering in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and set forth in the U.S. Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

195. That the conduct and actions of Defendant, DELATORRE acting in concert and under the color of State law, in assaulting, battering, detaining, and imprisoning and maliciously prosecuting Plaintiff, DELMAR TORO was done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause bodily harm, pain and suffering in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and set forth in the U.S. Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

196. That the conduct and actions of Defendant, DELATORRE acting in concert and under the color of State law, in assaulting, battering, detaining, and imprisoning and maliciously prosecuting Plaintiff, DANIEL MARTINEZ was done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without

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lawful justification, and were designed to and did cause bodily harm, pain and suffering in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and set forth in the U.S. Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

197. That the conduct and actions of Defendant, WOODS acting in concert and under the color of State law, in assaulting, battering, detaining, and imprisoning and maliciously prosecuting Plaintiff, DELMAR TORO was done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause bodily harm, pain and suffering in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and set forth in the U.S. Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

198. That the conduct and actions of Defendants, WOODS acting in concert and under the color of State law, in assaulting, battering, detaining, and imprisoning and maliciously prosecuting Plaintiff, DANIEL MARTINEZ was done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause bodily harm, pain and suffering in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and set forth in the U.S. Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

199. That Defendant, MAHONEY, deprived Plaintiff, DELMAR TORO of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. § 1983 and

set forth in the U.S. Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

200. That Defendant, MAHONEY, deprived Plaintiff, DANIEL MARTINEZ of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. § 1983 and set forth in the U.S. Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

201. That Defendant, DELATORRE, deprived Plaintiff, DELMAR TORO of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. § 1983 and set forth in the U.S. Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

202. That Defendant, DELATORRE, deprived Plaintiff, DANIEL MARTINEZ of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. § 1983 and set forth in the U.S. Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

203. That Defendant, WOODS, deprived Plaintiff, DELMAR TORO of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. § 1983 and set forth in the U.S. Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

204. That Defendant, WOODS, deprived Plaintiff, DANIEL MARTINEZ of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. § 1983 and set forth in the U.S. Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

205. That the actions taken by Defendants, MAHONEY, DELATORRE and WOODS, were undertaken under color of the law and would not have existed but for said Defendants using their official powers.

206. As a result of the above-mentioned constitutionally impermissible conduct, Plaintiffs were caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputation and standing within his community.

207. By reason of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

EIGHTH CAUSE OF ACTION

208. Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "207" above as if fully set forth herein.

209. All of the acts by the police defendants described above were carried out pursuant to policies and practices of defendant, CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the defendant City and its agency, the NYPD, and the Bronx County District Attorney's Office.

210. Defendant, CITY, by its policy-making agents, servants and employees, authorized, sanctioned and/or ratified the police defendants' wrongful acts; and/or failed to prevent or stop these acts; and/or allowed or encouraged these acts to continue.

211. That the sanctioning and ratification of these policies, customs and practices constitute deliberate indifference to or reckless disregard of the effect of said policies, customs and practices upon the constitutional rights of persons in the City of New York.

212. The actions of the defendant, CITY, resulted from and were taken pursuant to *de facto* policies and/or well-settled and widespread customs and practices of the CITY to arrest, seek to prosecute and continue to prosecute persons through fabricated and manipulated allegations without adequate basis in fact.

213. The actions of defendant, CITY, resulted from and were taken pursuant to *de facto* policies and/or well-settled and widespread customs and practices of the CITY to arrest, seek prosecute and continue to prosecute persons with ulterior motives.

214. The actions of defendant, CITY, its agents, servants and/or employees resulted from and were taken pursuant to *de facto* policies and/or well-settled and widespread customs and practices of the CITY to seek prosecute and continue to prosecute persons with ulterior motives.

215. The existence of such unlawful *de facto* policies and/or well-settled and widespread customs and practices has been known to supervisory and policy-making officers and officials of the CITY for a substantial period of time.

216. Despite knowledge of such unlawful *de facto* policies and practices, these supervisory and policy-making officers and officials of the CITY and their predecessors in interest did not discipline individuals who engaged in such practices.

217. That these policies, practices and customs include, inter alia: the failure to properly screen, supervise, discipline, transfer, counsel, or otherwise control police officers engaged in unconstitutional and impermissible arrests and imprisonments, particularly those who are repeatedly accused of such acts; and the police code of silence wherein police officers regularly cover up police abuse of power by telling false and incomplete stories or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanctioned and ratified these policies, customs, and practices through their

deliberate indifference to or reckless disregard of the effect of said policies, customs and practices upon the constitutional rights of persons in the City of New York.

218. The City's policies and practices in existence at the time of the conduct complained of herein, which caused plaintiffs' injuries herein included, inter alia: 1) failure to properly supervise, train, instruct, and discipline police officers with regard to proper conduct and investigation at and in relation to carrying out a search warrant; failure to supervise and train its officers in the preparation of truthful police paperwork, or to correctly and accurately document and preserve evidence or to memorialize investigative steps taken, or circumstances surrounding the obtaining of evidence that could be relevant to the investigation and/or prosecution, and/or discoverable in any litigation; 2) failure to properly train officers with respect to the New York State Penal Law and the state and federal Constitutions and with regard to adequate evidence necessary to accuse citizens of committing crimes; 3) failure to discipline those who unjustifiably charge and prosecute or continue to prosecute persons accused of crimes in the absence of probable cause; 4) failure to train with respect to the exercise and limitations of their authority; 5) failure to properly supervise, train, instruct, and discipline police officers, including defendant herein, known to be irresponsible in their dealings with citizens of the community; known to violate state and federal law and state and federal constitutional limitations in their investigative and law enforcement conduct, known to fabricate and falsify evidence, known to manipulate, intimidate, threaten, and coerce witnesses, known to deprive criminal defendants of their right to a fair trial, and known to arrest and initiate/continue prosecution in the absence of probable cause.

219. The effect of this practice is to permit police officers of the New York City Police Department to function at levels of significant and substantial risk to the public.

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220. That in the vast majority of police abuse cases that result in verdicts or substantial settlements for the victims, defendant, CITY, and the New York City Police Department fail to impose any discipline upon the police officers guilty of abuse, either before or after the Court resolution.

221. That defendant, CITY, after the resolution of civil cases that result in verdicts or substantial settlements for victims of police misconduct, almost never even reopens an investigation previously conducted.

222. That in a substantial number of cases, defendant, CITY, promotes the officers guilty of misconduct to a position of greater authority.

223. Upon information and belief, defendant, MAHONEY has been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, the defendant, CITY, and the New York City Police Department on notice that MAHONEY and others were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by Plaintiffs herein.

224. Upon information and belief, defendant, DELATORRE has been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, the defendant, CITY, and the New York City Police Department on notice that DELATORRE and others were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by Plaintiffs herein.

225. Upon information and belief, defendant, WOODS has been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, the defendant, CITY, and the New York City Police Department on notice that WOODS and others were likely to

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engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by Plaintiffs herein.

226. Upon information and belief, that other police officers involved in Plaintiffs' arrest, including MAHONEY, DELATORRE and WOODS had been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, the defendant, CITY, and the New York City Police Department on notice that defendant police officers herein were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by Plaintiff, herein.

227. Upon information and belief, police officers receive no training or woefully inadequate training regarding documentation of witness statements in a manner that will accurately documents and preserve the true circumstances surrounding identification procedures.

228. Defendant, CITY, knew or should have known that the acts alleged herein would deprive Plaintiffs of their rights, in violation of the Fourth, Fifth, Sixth, Ninth, and Fourteenth Amendments to the United States Constitution and Article 1, §§ 1, 6, 11, and 12 of the Constitution of the State of New York, including, without limitation, Plaintiffs' freedom from deprivation of liberty and property without due process of law.

229. That the policy of failure to screen, discipline, supervise, counsel, transfer, control and correct unconstitutional patterns or conditions, is evidenced, inter alia, by the following:

a) The fact that in only a small percentage of cases involving complaints against police officers is some form of discipline recommended.

b) The fact that cases where complaints have been lodged against police officers were inadequately investigated.

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c) The fact that the decision as to whether to discipline a police officer is taken relying primarily on police officers to conduct the investigations of alleged misconduct.

d) The fact that, upon information and belief, only a small number of police officers have been has been fired for such misconduct since 1989.

e) The fact that of the above-mentioned complaints that were found to be substantiated, most do not result in any kind of meaningful discipline

230. Defendant, CITY, had a policy of ignoring law enforcement improprieties and misconduct, including the purposeful and wrongful accusation

NINTH CAUSE OF ACTION

231. Plaintiffs repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "230" above as if fully set forth herein.

232. That the actions of defendants heretofore described resulting from the May 7, 2013, detention, imprisonment, assault and battery, use of excessive force and malicious prosecution deprived Plaintiffs of rights, privileges and immunities as guaranteed under 42 U.S.C. § 1983 and set forth in the U.S. Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

233. That in the event that Plaintiffs are successful in the prosecution of the aforesaid claims, Plaintiffs shall be a prevailing party within the meaning of U.S.C. § 1983 and entitled to recovery of attorneys' fees from the Defendants.

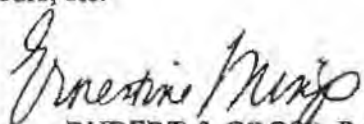
234. By reason of the foregoing, Plaintiffs demand judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

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WHEREFORE, Plaintiffs, DELMAR TORO and DANIEL MARTINEZ, respectfully demand judgment against Defendants, The City of New York, Defendants, P.O. Mahoney, P.O. Steven Delatorre and P.O. Thomas Woods and request compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction; and award of reasonable attorney's fee, cost and disbursements of this action and such other and further relief as this Court may deem just, fair and proper under the circumstances.

Dated: New York, New York
July 10, 2014

Yours, etc.



RUBERT & GROSS, P.C.
Attorneys for Plaintiffs
150 Broadway, Suite 712
New York, New York 10038
Telephone: (212) 608-3103
Facsimile: (212) 608-1316